

THE DUTIES OF TRUSTEES OF CHARITIES.¹

1. CHARITIES may either be established by charter, as *eleemosynary corporations*, or may be placed under the management of *individual trustees*.

¹ *Charities and charitable uses*.—The intention of the settlor must be determined whether the trust is public or private, charitable or otherwise; *Olliffe v. Wells*, 130 Mass. 221; but if a trust has been found to be for a charity, different rules apply to it; *Saltonstall v. Sanders*, 11 Allen, 456; *Odell v. Odell*, 10 Allen, 1; *Fontain v. Ravenel*, 17 How. 384. Charities are subject to equitable jurisdiction and construction; *Vidal v. Girard's Ex'rs*, 2 How. 127; *Vidal v. Philadelphia*, 2 How. 128; *Tappan v. Deblois*, 45 Me. 122; *Ould v. Washington Hospital*, 95 U. S. 303; *Jackson v. Phillips*, 14 Allen, 558.

Definition.—"A charity, in the legal sense, may be more fully defined as a gift, to be applied consistently with existing laws, for the benefit of an indefinite number of persons, either by bringing their minds or hearts under the influence of education or religion, by relieving their bodies from disease, suffering or constraint, by assisting them to establish themselves in life, or by erecting or maintaining public buildings or works, or otherwise lessening the burdens of government. It is immaterial whether the purpose is called charitable in the gift itself, if it is so described as to show that it is charitable in its nature;" *Jackson v. Phillips*, 14 Allen, 558. A "purely public charity" may be one in which the designated beneficiaries are to be all of one particular religious faith, provided that the persons to be benefited are indefinite within the specified class. "Purely" means completely, entirely, unqualifiedly, &c. Public charities may be restricted to a class of people of a state, or city, &c., but must be general for all the class. The test is in the object of the investment, not the public or private gain; *Burd Orphan Asylum v. School Dist. Upper Darby*, 90 Pa. St. 21; *McDonald v. Mass. Gen. Hospital*, 120 Mass. 432; 21 Am. Rep. 529; *Clement v. Hyde*, 50 Vt. 716; 28 Am. Rep. 522; *Warde v. Manchester*, 56 N. H. 508.

"Whatever is given for the love of God, or for the love of our neighbor, in the catholic and universal sense, given from these motives and to these ends, free from the stain of everything that is personal, private, or selfish, is a gift for charitable uses." Mr. Binney's argument in the *Girard Will* case, 41; *Price v. Maxwell*, 4 Casey, 23; *Rhymer's App.* 93 Pa. St. 142; *Schnorr's App.* 17 P. F. Smith, 138; *Everett v. Carr*, 59 Me. 325; *Perin v. Carey*, 24 How. 508.

Public charity.—A gift "for the relief of the resident poor" is a charitable bequest; *Howard v. American Peace Soc.* 49 Me. 288; *Swasy v. American Bible Soc.* 57 Me. 523; *Hesketh v. Murphy*, 36 N. J. Eq. 304; *Craig v. Secrist*, 54 Ind. 419; *Webster v. Morris*, 66 Wis. 366; 67 Am. Rep. 278. A